UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

SAN FRANCISCO DIVISION

WAYMO LLC,

Plaintiff,

v.

UBER TECHNOLOGIES, INC., OTTOMOTTO LLC; OTTO TRUCKING LLC,

Defendants.

Case No. 3:17-cv-00939-WHA

STIPULATION AND ~~[PROPOSED]~~ ORDER OF DISMISSAL

IT IS HEREBY STIPULATED, by the undersigned counsel for Plaintiff Waymo LLC and Defendants Uber Technologies, Inc. and Ottomotto LLC (collectively, "Uber"), that pursuant to a confidential settlement agreement, all claims in this action are dismissed with prejudice, all parties to bear their own attorney's fees and costs.

Dated: February 8, 2018

QUINN EMANUEL URQUHART & SULLIVAN, LLP

By: */s/ Charles K. Verhoeven*
CHARLES K. VERHOEVEN

Attorneys for Plaintiff
WAYMO LLC

Dated: February 8, 2018

MORRISON & FOERSTER LLP

By: */s/ Michael A. Jacobs*
MICHAEL A. JACOBS

Attorneys for Defendants
UBER TECHNOLOGIES, INC.
and OTTOMOTTO LLC

PURSUANT TO STIPULATION, IT IS SO ORDERED.

DATED: February 9, 2018

The Honorable William Alsup